Dyes And Chemical Workers Union vs Bombay Oil Industries Ltd. And Anr. on 23 January, 2001

Equivalent citations: [2001(89)FLR638], (2001)ILLJ1252BOM

Author: B.N. Srikrishna

Bench: B.N. Srikrishna, S.D. Gundewar

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JUDGMENT


  B.N. Srikrishna, J.
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1. By an order made on November 18, 2000, the Hon'ble Chief Justice has referred to this Division Bench for resolution of a conflict of opinion between two learned single Judges.

2. The circumstances under which the conflict has arisen are as under:

> "While deciding Writ Petition No. 4527 of 2000 one of the learned single Judges (KOCHAR, J.) took the view that for the purpose of application of Section 25-K of the Industrial Disputes Act, 1947 (hereinafter referred to as "the said Act"), the test to be applied is whether on an average per working day for the preceding twelve months 100 'workmen' as defined in Section 2(s) of the said Act were employed in the industrial establishment. In this view of the matter, the learned single Judge expressed an opinion that employees of contractors, mathadi workmen and workmen of other associate industrial establishments with which there was no functional integrality were not liable to be included for the purpose of computing the average per day employment of the industrial establishment in question. Taking this view, the learned single Judge dismissed the writ petition. The decision of the learned single Judge KOCHAR, J. has been appealed against in Letters Patent Appeal No. 356 of 2000."

3. Writ Petition No. 1632 of 2000 came to be argued before another learned single Judge (DR. CHANDRACHUD, J.) and the judgment of Justice KOCHAR in Writ Petition No. 4527 of 1995 was cited before him. CHANDRACHUD, J. expressed his disagreement. The learned Judge was of the view that the expression "industrial establishment" used in Section 25-K of the said Act having been defined in Section 25-L to mean a 'factory' as defined in Clause (m) of Section 2 of the Factories Act, 1948 or a 'mine' as defined in Section 2(1)(j) of the Mines Act, 1952 or a 'plantation' as defined in Section 2(f) of the Plantations Labour Act, 1951 and the writ petition pertained to a factory, the expression "workmen" used in Sub-section (1) of Section 25-K had to bear the same meaning as in the definition of the expression "worker" in Section 2(1) of the Factories Act, 1948. It was

emphasised by the learned single Judge that the definition in Section 2(1) of the Factories Act, 1948 included within its sweep all persons employed directly or by or through any agency or through a contractor, with or without the knowledge of the principal employer, whether for remuneration or not, in any manufacturing process, or in any kind of work incidental thereto. The learned Judge was, therefore, of the view that all employees, notwithstanding the absence of privity of contract between the principal employer and the employees of contractors, and mathadi workers, had to be included for the purposes of computing the average per day employment of workmen as required under Sub-section (1) of Section 25-K. He differed from the view taken by Justice KOCHAR and directed that the papers be placed before the learned Chief Justice for referring the issue to be decided by a larger Bench. That is how the matter has been referred to us. As the Letters Patent Appeal involves the very same issue, the Letters Patent Appeal is also tagged along with the reference.

4. Since the question referred to us has not been precisely formulated, after hearing counsel we formulated the question for our consideration as under:

> "Whether for the purposes of computing the number of workmen while applying Sub-section (1) of Section 25-K of the Industrial Disputes Act, 1947 contractors workmen, mathadi workers and workmen of other industrial establishments are liable to be included?"

5. Prior to its amendment by Act 32 of 1976, with effect from March 5, 1976, the Industrial Disputes Act, 1947 contained only Chapter VA which deals with subjects like lay-off, retrenchment, transfer of management and closure of undertakings. The fasciculus of Sections 25-A to 25-H covers this subject. The last section in Chapter VA is Section 25-J which gives overriding effect to the provisions of the Chapter. Section 25-A provides that Section 25-C to Section 25-E shall not apply to certain types of industrial establishments. Section 25-E has an identical definition of "industrial establishment" as meaning a factory, a mine or a plantation as defined in the respective Act. It is urged that whenever the industrial establishment under consideration is a factory within the meaning of Section 2(1) of the Factories Act, 1948, keeping in mind the expanded definition of the expression "worker" in Section 2(1) of this Factories Act, 1948, all contractors employees and workmen whose services are controlled by statutory boards, will also have to be included while computing the total employment of workmen while deciding the application of Section 25-K. On a parity of reasoning, this must follow, is the submission.

6. By the amendment made by Act 32 of 1976 the fasciculus of Sections 25-K to 25-S comprised in Chapter VB was added to the statute. This chapter, as the title suggests, contains several provisions relating to lay-off, retrenchment and closure in certain establishments. Such establishments are the establishments in which not less than 100 workmen were employed on an average per working day of the preceding twelve months. The Legislature enacted special provisions for dealing with such larger establishments with larger employment, as consequences of lay off, retrenchment and closure are more acutely felt therein and cause greater hardship and wider social repercussions. Consequently, the Legislature severely restricted the hitherto unfettered rights of an employer to resort to layoff, retrenchment and closure in such larger establishments. To effectuate this objective, provisions have been made for prohibiting lay-off (Section 25-M), retrenchment (Section 25-N) and

closure (Section 25-O) without obtaining permission of the prescribed authorities. There are statutory forms prescribed for applying for such permission, provisions for the type of hearing to be given by the appropriate authority, the orders to be made and the remedies open to the aggrieved parties. We are not concerned with these details. Noticeably there is no substantial difference between Chapter VA and Chapter VB, except that actions of lay-off, retrenchment and closure in larger establishments is subject to permission of appropriate authority. Correspondingly, Section 25-Q and 25-R render it a criminal offence for an employer to resort to lay-off, retrenchment or closure of an industrial establishment without complying; with the requisite stringent provisions of Sections 25-M, 25-N and 25-O.

7. Section 25-K is the section which determines the application of Chapter V-B and it reads as under:

> "25-K. Application of Chapter V-B. (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed intermittently) in which not less than one hundred workmen were employed on an average per working day for the preceding twelve months.
>
> (2)....."

The applicability of Chapter V-B depends on whether not less than hundred workmen were employed in the concerned establishment on an average per working day for the preceding twelve months. The expression "workman" is defined in Section 2(s) of the Act to mean any person employed in any industry to do different types of work as enumerated therein subject to inclusions and exclusions provided in the said definition clause which need not detain us. The key word in the definition is "employed".

8. Section 2(s) has been the subject matter of decisions by the Supreme Court. It is now well settled law that in order to fall within the definition of "workman" in Section 2(s), there must be a legal relationship of employer-employee or master and servant. Unless a person is thus employed, there is no question of his being a "workman" within the definition of Section 2(s) of the Industrial Disputes Act, 1947. (See in this connection, the judgment of the Supreme Court in Dharangadhara Chemical Works Ltd. v. State of Saurashtra . Conversely, it has been held that where, as in the case of contractor's employees, there is no privity of contract of employment or vinculum juris establishing a relationship of employer-employee or master and servant between the person who works and the employer, then such person will not be a 'workman' within the meaning of Section 2(s) of the said Act. (See in this connection, the enunciation of law in The Workmen of the Food Corporation of India v. Food Corporation of India . The position in law, therefore, is that every person who works for another, does not become a workman. He will become a workman only if there is a legal relationship of employer-employee or master-servant between them; conversely, in all other cases, absence of such relationship, the working person would not be a "workman" as understood in Section 2(s) of the Act.

9. The judgment of Justice KOCHAR proceeds on a construction of Section 25-K, particularly, the expression "workmen" used therein, by resort to the definition of the term in Section 2(s) of the Act as expounded by the Supreme Court.

10. It is a well-known canon of interpretation of statutes that a word defined in the statute must be deemed to have been used in that sense unless the context suggests or leads to repugnancy with such meaning. We would have thought that the exercise involved no more than application of this basic principle of interpretation of statutes. However, since one learned Judge has taken a contrary view and counsel at the Bar have vehemently urged contentions in support thereof, our task has become onerous and we are required to critically appraise the contentions.

11. Counsel for the workmen in both the cases have urged that we must accept the construction of Section 25-K which appealed to Justice CHANDRACHUD. There are several difficulties in the way of accepting this construction. In the first place, merely because the expression "industrial establishment" is defined in Section 25-L to inter alia include a 'factory' within the meaning of Section 2(m) of the Factories Act, there is no warrant to construe all words in that section by applying the definitions contained in Section 2 of the Factories Act. First, the definition clause of the Factories Act is intended to be a key for understanding the expressions used in the said statute and is not of universal application. The words defined in a statute are for understanding of that statute and can have no general import. Secondly, the expression used in the Factories Act, 1948 is not "workman", but "worker". Since the two terms are not identical, it is conceivable that their exact imports might vary. In the case of the term "workman", the element of master-servant or employer-employee relationship is crucial. The Factories Act, while defining for its purpose an employed person as a "worker", has made a deliberate departure and included within its sweep even persons who may not fall within the definition of "workman".

12. The two statutes are neither pan materia, nor are they intended to operate in the same sphere. As the preamble of the Factories Act, 1948 indicates, the objectives of the Factories Act is to consolidate and amend the law regulating labour in factories; the object of the Industrial Disputes Act is "to make provision for the investigation and settlement of industrial disputes, and for certain other purposes."

13. Each of these statutes is aimed at attaining a different objective and, therefore, advisedly, the definition term applicable to working persons has been differently defined in both statutes. In the Factories Act, the predominant objective is to provide for safety measures and minimum conditions of labour so that the factory does not turn into a sweat shop. It is obvious that this is a larger objective and has to be enforced strictly with regard to all persons who work within the premises or precincts of the factory, irrespective of whether there is a legal vinculum juris of employer-employee between the occupier of the factory and the person carrying out the work. When we turn to the Industrial Disputes Act, we find that the objective is considerably narrow. The objective is to provide a machinery for resolution of industrial disputes. Necessarily, this is of narrower ambit limited to the sphere of contractual relationship of employer-employee, leaving out of its purview persons with whom there is no employer-employee relationship. This again is designedly so for even a contractor's employee who is deployed in an industrial establishment of a principal employer would

be the direct employee of the contractor and the machinery of the Industrial Disputes Act is available to regulate their inter se relationship. Would it ' therefore be justified to hold that the machinery of the Industrial Disputes Act is intended to regulate the relationship between the principal employers and working force with which the principal employer has no employer-employee relationship? As we shall shortly indicate, the answer must obviously be in the negative.

14. The learned counsel for the employees, Ms. Mhatre and Mr. Gonsalves, urge that the view taken by CHANDRACHUD, J. is perfectly justified and must be upheld. Ms. Mhatre invited our attention to the judgment of this Court in Krantikari Suraksha Rakshak Sanghatna, Thane v. A.L. Alaspurkar reported in 1996 LIC 2620 (to which one of us, SRIKRISHNA, J. was a party) and contended that this judgment supports the view taken by CHANDRACHUD, J. We have perused the entire judgment with the help of the learned counsel and we are unable to see how the judgment supports the proposition canvassed by the learned counsel. It is true that in this judgment, following the earlier judgment of this Court in Tradesvel Security Services P. Ltd. v. State of Maharashtra Vol. 84 1982 Bom. L.R. 608 it was held that, for the purposes of the Maharashtra Private Security Guards (Regulation of Employment and Welfare) Act, 1981, the Security Board constituted under the said Act is not the employer of the private security guards. Notwithstanding that the provisions contained in the Scheme formulated under the said Act, by which several conditions of service of private security guards like payment of wages, fringe benefits and disciplinary action were controlled under the Act and the Board constituted under the Act has several overriding powers including the power to take disciplinary action against the private security guard allotted by the Board to the registered employers, this Court took the view that there can be several situations, not provided by the said Act and the Scheme formulated thereunder, wherein it would be necessary to identify the employer so that the security guards may have a remedy against him. Considering the provisions of the Maharashtra Recognition of Trade Unions and Prevention of Unfair Labour Practices Act, 1971 and the several provisions contained therein which aim at prevention of unfair labour practices, this Court laid down that such subject not having been adequately taken care of by the Private Security Guards Act and the Scheme made thereunder, it was one area in which the registered employer must be held to be the employer at least for the purpose of a complaint of unfair labour practices. The view of the Court is expressed in the observation in paragraph 43 as under:

> "I am, therefore, of the view that the Courts below were wrong in holding that there could never be a legal relationship of employer-employee between the registered employer and the Security Guards for any purpose whatsoever. Though, out of the several strands of the vinculum juris which go to make the employment contract, most may have been snapped by statute, as long as even a single strand remains, the policy of the statute, as declared by this Court in Tradesvel Security, is that, for that purpose, the registered employer must be considered the employer of the registered Security Guards."

In this view of the matter, it was held that a complaint under the Maharashtra Recognition of Trade Unions and Prevention of Unfair Labour Practices Act, 1971 was maintainable against the registered employer under certain circumstances. Ms. Mhatre contends that sub silentio this case decides that

employees allotted by statutory Boards like the Mathadi Board (it is not in dispute that the provisions of the Private Security Guards Act and the Maharashtra Mathadi, Hamal and other Manual Workers (Regulation of Employment and Welfare) Act, 1969 and the Schemes made for employment of registered employees under both the statutes are substantially similar). The learned counsel urges that inasmuch as this Court in Krantikari Suraksha Rakshak Sang-hatana case (supra) held that a complaint under the Maharashtra Recognition of Trade Unions & Prevention of Unfair Labour Practices Act, 1971 on behalf of the registered employees was tenable against the registered employer, this Court was of the view that the employees registered under the Act and the Scheme were employees within the meaning of Section 3(5) of the MRTU & PULP Act, 1971. The definition of employees in Section 3(5) of the said Act has to be imported from the definition of "workman" in Section 2(s) of the Industrial Disputes Act, 1947. Hence, she contends that this judgment decides that registered employees of such statutory boards deployed for work on the establishments of registered employers have been declared to be 'workmen' within the meaning of Section 2(s).

15. It is not possible to accept the contention of Ms. Mhatre. It is trite law that a judgment is an authority for what it decides and not what is logically deducible therefrom. As was said by Lord Chancellor HALSBURY in Quinn v. Leathern, H.L. (I.) 1901, 495, "..... there are two observations of a general character which I wish to make, and one is to repeat what I have very often said before, that every judgment must be read as applicable to the particular facts proved, or assumed to be proved, since the generality of the expressions which may be found there are not intended to be expositions of the whole law, but governed and qualified by the particular facts of the case in which such expressions are to be found. The other is that a case is only an authority for what it actually decides. I entirely deny that it can be quoted for a proposition that may seem to follow logically from it. Such a mode of reasoning assumes that the law is necessarily a logical code, whereas every lawyer must acknowledge that the law is not always logical at all."

This proposition has been consistently followed without being seriously doubted, both in England and in India. We have already pointed out that the judgment in Krantikari Suraksha Rakshak Sanghatana (supra) does not lay down the proposition which Smt. Mhatre canvassed. We regret we cannot accept the said judgment as an authority on the proposition canvassed, even assuming such a proposition is logically deducible therefrom.

16. Smt. Mhatre referred to a judgment of the Supreme Court in Vishakapatnam Dock Labour Board v. Stevedores Association, Vishakapatnam and Ors., and contended that this judgment of the Supreme Court supports the interpretation canvassed by her. The Vishakapatnam Dock Labour Board case (supra) concerns the interpretation of the Dock Workers (Regulation of Employment) Act, 1948, Section 4 and the scheme made thereunder. The Act and the Scheme derive their inspiration from similar Acts and Schemes in England and have also supplied inspiration for the enactment of the Maharashtra Mathadi, Hamal and other Manual Workers (Regulation of Employment and Welfare) Act, 1969 and the Schemes thereunder as well as the similar such Acts and Schemes which regulate employment of unorganised labour. In Vishakapatnam Dock Labour Board case (supra) the stevedores (somewhat like our registered employers) used to engage dock labour supplied by the Board on different operations. The dock labour raised an industrial dispute as against the Association of Stevedores for payment of bonus. The resultant industrial dispute was

referred for adjudication of the Industrial Tribunal. Before the Industrial Tribunal the unions representing the dock labourers filed a statement of claims justifying the demand as against the stevedores. During the course of adjudication, the Tribunal took the view that in law it was the Dock Labour Board which was the real employer of the dock workers and, therefore, the said Board was liable for meeting the claim for bonus. This was challenged by the Dock Labour Board before the Supreme Court in an appeal under Article 136. The learned Attorney General, who appeared for the Dock Labour Board, raised two issues: (i) that the Tribunal acted illegally and beyond jurisdiction in making the Dock Labour Board liable for payment of bonus when the claim of the workmen for such payment was against the Stevedores Association and its members and (ii) having due regard to the provisions of the Act and the Scheme and the function discharged by the Board, the Tribunal should have held that there is no employer-employee relationship between the Board and the Dock Labour Workmen. As to issue No. (i), the Supreme Court took the view that, in view of the pleadings and the nature of the claim made by the workmen, the award made against the Dock Labour Board was not correct and was liable to be interfered with. Dealing with the second issue, the Supreme Court analysed the applicable Act and the details of the scheme framed thereunder for employment of Dock Labour Board and came to the conclusion that the Board was a statutory board charged with the duty of administering the scheme, the object of which was to ensure greater regularity of employment for dock workers and to ensure that adequate number of dock workers were available for efficient performance of the dock work. After taking into consideration the various facets of the section, the Supreme Court was of the opinion that all the circumstances prima facie snowed that the Board cannot be considered to be the employer of the Dock Labour Workmen and that the various provisions referred to in the schemes clearly showed that the registered employer to whom the labour force was allotted by the Board, was the employer whose work of loading or unloading of the ships was done by the dock workers allotted to them. The Supreme Court was also of the view that there was no relationship of employer and employee between the Board and the Dock Labour, particularly, in the light of the definitions of the expression "dock worker" in Section 2(b) and "employer" in Section 2(c). This judgment holds in terms that there was no employer-employee relationship between the Dock Labour Board and the dock labour and expresses the prima facie view that the registered employer could be the employer. There is no finding in this judgment that there was a relationship of employer-employee between the registered employer and the dock labourers. In fact, the issue raised for consideration was: whether the Dock Labour Board was the employer? and the Supreme Court answered it in the negative. It is true that the reference was remanded back to the Tribunal for adjudication in accordance with law. In our view, it is not possible to deduce from this judgment that the registered employers, even under the Visakhapatnam Dock Labour Act and the Scheme, were clearly held to be employers of the dock labourers allotted to them by the statutory Board. When we come to the provisions of the Maharashtra Mathadi, Hamal and other Manual Workers (Regulation of Employment and Welfare) Act, 1969, we find that the scheme is not in pan materia with the scheme applicable to the Visakhapatnam Dock Labour Board. The expressions "dock labour" and "employer" in Section 2(b) and (c), respectively, are not contained in the Mathadi Act. For all these reasons, we are unable to accept the contention of Ms. Mhatre that this judgment of the Supreme Court helps her. Though, once again, Ms. Mhatre tried to argue deductively from this authority that the proposition canvassed by her is logically deducible from this judgment, for reasons, as already indicated, such an argument cannot be countenanced.

17. We agree with the contention of Mr. Singhvi, learned counsel for the Board that, if an interpretative exercise is undertaken by the Court, even to the extent of ignoring the definition given, in the statute, there must be extraordinary circumstances leading to patent absurdity, incongruity or repugnancy when the definition is applied for construing any particular provision of a statute. Reliance by counsel on the judgment of the English Court in R. V. Inland Revenue Commissioners, ex parte, 1990 II All England Reporter 409 and Hodd-Barrs v. Commissioner of Inland Revenue, 1946 II All England Reporter 768 is apposite. These judgments clearly hold that , when a definition clause provides in a statute ' that the definition would apply unless otherwise required or is repugnant to the context, all that the Court is required to see is whether the definition can be reasonably applied to construe a section in the statute without leading to a startling result and see whether there is any context which requires the Court to reject some of the words of the definition. If no such startling result, patent repugnancy or absurdity are to be discerned, the definition clause must be applied. When the statute supplies us with a key to the interpretation of the statute, it is not permissible for the Court to use a jemmy. We find no difficulty in interpreting the expression workmen" used in Section 25-K by application of the definition of the expression used in Section 2(s) of the said Act. Application of the said definition leads to no repugnancy in the context, no absurdity, nor inconsistency. Hence, the Court is plainly duty bound to interpret the expression "workmen" used in Section 25-K(1) by applying the meaning given in the definition Clause 2(s). (See also in this connection Vanguard Fire & General Insurance Co. v. Fraser & Ross and Anr. for instance of an inconsistency where the Court refused to apply the definition clause for interpreting a provision).

18. Mr. Gonsalves, learned counsel appearing for the appellant in Letters Patent Appeal No. 356 of 2000, however adopted a different line of reasoning for supporting the conclusion reached by the judgment of Justice CHANDRACHUD. He contends that, for the purposes of construction of Section 25-K, the key words are "an industrial establishment in which not less than hundred workmen were employed on an average per working day for the preceding twelve months", the emphasis being on the preposition "in". He urges that, as long as there is an industrial establishment which is a factory within the meaning of Section 2(m) of the Factories Act, 1948, there are workmen employed therein, and the test of average employment prescribed by Section 25-K is fulfilled, then the provisions of Section V-B would apply. It is further his contention that, even assuming that there is a genuine contract system in vogue or there are mathadi workers deployed in the factory, they would be "workmen" within the meaning of Section 2(s) as even in their cases there would be a relationship of master and servant or employer-employee with their respective employers. Thus, every worker who works on the industrial establishment would be an employee of some employer; hence, he would be a 'workman' within the meaning of Section 2(s) of the said Act. Thus, according to Mr. Gonsalves, there should be no difficulty in adding up the number of such workmen for the purposes of computing the requisite number for the applicability of Section 25-K. It is his further contention that, if the interpretation canvassed by him is not accepted, then all the provisions of Chapter V-B could be circumvented and defeated by a dishonest employer employing only a marginal number of direct employees and engaging large number of contract employees.

19. It is difficult to accept the contention of Mr. Gonsalves. We have already pointed out that the provisions of Chapters V-A and V-B run parallel on the subjects of lay-off; retrenchment and closure

of establishments, though in the case of Chapter V-B, considering the large number of workmen involved, the Legislature has made stringent provisions with regard to prior permission and provided for penal consequences for breach thereof. If the construction sought to be canvassed by Mr. Gonsalves is correct, then it must apply equally to construction of Section 25-A(1)(a) for that section also uses the proposition "in" and contains an explanation which is identical with the provisions of Section 25-L(a) for defining the term "industrial establishment". If the argument of Mr. Gonsalves is right, then under Section 25-F all contractor's workmen would have also to be paid retrenchment compensation by the principal employer. Similarly, all contractor's workers would have right of notice and retrenchment compensation as against the principal employer under Section 25-F and finally the provisions of Section 25-FFF (closure), Section 25-G (procedure for retrenchment) and Section 25-H (Re-employment of retrenched workmen) would all be applicable in the case of contract labour also. If this was the situation in law, there was absolutely no necessity for Parliament to have enacted a separate statute styled as The Contract Labour (Regulation and Abolition) Act, 1970 which deals with the condition of contract labour. The 1970 Act does not wisk away contract labour. Section 10 of the said Act contains detailed guidelines against the background of which the appropriate authorities have to take a decision for prohibition of engagement of contract labour in specified occupations or industries and advise the appropriate Government accordingly. After considering the said advise the appropriate Government may issue a notification prohibiting the employment of contract labour in such occupation/industries. It is only if such a notification is issued that contract labour comes to an end. If the interpretation suggested by Mr. Gonsalves is right, it would be a magic wand which will do away with contract labour for all purposes of lay-off, retrenchment and closure, at least, and would render redundant the detailed provisions contained in Section 10 of the Contract Labour (Regulation and Abolition) Act, 1970.

20. Apart from the difficulty in construing the provisions of Chapter V-A as suggested by Mr. Gonsalves, we also notice that the provisions of Chapter V-B would become unworkable. A careful reading of the provisions of Chapter V-B, running from Sections 25-N & 25-R, does not commend to us the construction suggested by the learned counsel.

21. Both Ms. Mhatre and Mr. Gonsalves contend that if the construction suggested by them (which appealed to CHANDRACHUD, J.) is not accepted, then the employer can engage a large number of contract workers and exploit them. In our view, this argument is unsound. When Parliament has made a provision of law, it is the duty of the Court to implement the law as it stands, irrespective of the hardship or inconvenience that may ensue from implementation thereof. If the contract labour is exploited, as urged, then the remedy lies elsewhere for seeking relief either under the Contract Labour (Regulation and Abolition) Act, 1970 or by invoking the provisions pertaining to unfair labour practices, either under the Maharashtra Act or under the Industrial Disputes Act. One does not use a battle axe to slice an apple; nor does one use the sledge hammer to crack a nut. The construction canvassed by the learned counsel for the workmen would make the provisions of the unfair labour practices unworkable. We see no necessity for adopting such an involved and convoluted interpretation of the statute, when the statute itself has provided a definition of the expression "workmen", the application of which leads to no absurdity, inconsistency or repugnancy in the context or subject. Departure from the definition in the defining clause may be justified in the event of repugnancy, but not to deal with the contingency of what is perceived to be a gaping hole in

the legislation. The doctrine causus omissus is clearly applicable here. It is not for the Court to supply what the Legislature omitted to do.

22. On a conspectus of all facets of the arguments, we are of the opinion that the interpretation adopted by the learned single Judge, KOCHAR, J., is preferable to the one which appealed to the learned single Judge, Dr. CHANDRACHUD, J.

23. In the result, we answer the question referred to us as under:

> (i) For the purpose of computation of the total number of workmen employed on an average per working day for the last twelve months, as contemplated under Section 25-K(1) of the Industrial Disputes Act, only persons who answer the definition of "workmen" as contained in Section 2(s) of the Industrial Disputes Act are liable to be included. Mathadi workmen and contractor's workers cannot be included in computing such number. As far as 'workmen' of other industrial establishments are concerned, they can be included only if there is functional integrality between the industrial establishment whose case under Section 25-K is being considered and such other establishments.
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> (ii) We answer the reference accordingly.

24. Writ Petition No. 1632 of 2000 and Letters Patent Appeal No. 356 of 2000 shall be placed before the appropriate Court hearing those matters to be decided on merits in the light of the opinion we have expressed.

25. The parties may be provided ordinary copy of this order duly authenticated by Court Associate.

26. Certified copy expedited.